

☒ BRAND NAME/SOLE SOURCE JUSTIFICATION (SAM) ≤ SAT

☐ LIMITED-SOURCES JUSTIFICATION (GSA) ≤ SAT

☐ JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY
(ID/IQ TASK ORDER/DELIVERY ORDER) ≤ SAT

1. Description of Supplies/Services.

PART #	DESCRIPTION	QTY
RA-PS-INST-ONST	Rubrik Professional Services, Onsite Installation and Configuration of up to 8 (briks/32 nodes) per site, must be used within 6 months of purchase, prepay	1
RA-PS-CON-RMOT	Rubrik Professional Services, Remote Consulting services per day, must be used within 6 months of purchase, prepay	1
RS-BT-EE-RSCP-PE-PP	Rubrik Security Cloud - Private, Enterprise Edition; per usable BETB; Premium support; prepay	180
RS-NRD-R7000	Non-Returnable Disk Service for Rubrik R7000 Appliance	1
RS-HW-SVC-R7K-PE-S3	Support for R7000-3 hardware, prepay; Premium support	1
RHA-7424-01	R7424 Appliance, 4-node, 288TB raw HDD, 30.7TB NvMe, SFP+ NIC	1
RCA-F3M-CBL-01	Fiber Optic OM3 LC/LC Cable, 3M, pack of 4	2
RCA-SFP-TSR-01	10G/1G Dual Rate SFP+ Transceiver, pack of 4	2

The requested ☒ supplies ☒ services represent the minimum requirements of the Government, which have been verified by the certifying technical and requirements personnel.

2. Regulatory Authority Permitting Other Than Full and Open Competition.

SAM

☐ FAR 13.106-1(b)(i) Soliciting from a single source

☒ FAR 13.106-1(b)(ii) Particular brand-name item

GSA

☐ FAR 8.405-6(a)(i)(1)(A) An urgent and compelling need exists

☐ FAR 8.405-6(a)(i)(1)(B) Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized

☐ FAR 8.405-6(a)(i)(1)(C) In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures (the original order or BPA must not have been previously issued under sole-source or limited-sources procedures).

☐ FAR 8.405-6 (b) Items peculiar to one manufacturer (brand-name item)

ID/IQ Task Order/Delivery Order (e.g. NASA SEWP or ARMY CHESS)

☐ FAR 16.505(b)(2)(i)(A) The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

☐ FAR 16.505(b)(2)(i)(B) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized

☐ FAR 16.505(b)(2)(i)(C) The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order. [When utilizing this exception, the rationale shall describe why the relationship between the initial order and the follow-on is logical (e.g., in terms of scope, period of performance, or value).]

☐ FAR 16.505(b)(2)(i)(D) It is necessary to place an order to satisfy a minimum guarantee.

☐ FAR 16.505(b)(2)(i)(E) For orders exceeding the *simplified acquisition threshold*, a statute expressly authorizes or requires that the purchase be made from a specified source.

☐ FAR 16.505(b)(2)(i)(F) In accordance with section 1331 of Public Law 111-240 (15 U.S.C. 644(r)), *contracting officers may*, at their discretion, set aside orders for any of the small business concerns identified in 19.000(a)(3). When setting aside orders for small business concerns, the specific small business program eligibility requirements identified in part 19 apply.

☐ FAR 16.505(b)(2)(i)(G) For DoD, NASA, and the Coast Guard, the order satisfies one of the exceptions permitting the use of other than *full and open competition* listed in 6.302 (10 U.S.C. 3406(c)(5)). The public interest exception *shall* not be used unless Congress is notified in accordance with 10 U.S.C. 3204(a)(7).

3. Rationale Justifying Use of Cited Regulatory Authority.

a.) ☐ ***The Items Described in Paragraph 1 Must Be Compatible In All Aspects (Form, Fit And Function) With Existing Systems Presently Installed.***

b.) ☐ ***A Patent, Copyright, or Proprietary Data Limits Competition.***

c.) ☐ ***The Items Described in Paragraph 1 are “Direct Replacements” Parts/Components for Existing Equipment.***

d.) ☐ ***Foreign Military Sales (FMS) Supported By A Case Letter.***

☐ e.) *Unusual and Compelling Urgency.*

☒ f.) *Other: If required, discuss any other rationale that supports the use of a brand name/sole source for this effort.*

NSWC Corona Code PA21 provides IT support for the Missile Defense Agency (MDA) Aegis Ballistic Missile Defense (ABMD) enclave, and one of its primary requirements is to ensure data resilience and the ability to rapidly recover from cyber incidents.

4. Implication of Procuring Another Brand/Manufacturer.

a.) ☒ *Unacceptable Delays in Fulfilling the Agency's Requirements.*

[Redacted]

b.) ☒ *Substantial Duplication Of Cost To The Government That Is Not Expected To Be Recovered Through Competition.*

c.) ☐ *Other: If required, discuss any other implication of procuring another brand/manufacturer.*

5. Actions to Remove Barriers to Competition.

For the reasons set forth in Paragraph 4.a. and 4.b., NSWCCO has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, NSWCCO will assess whether competition for future requirements is feasible.

CERTIFICATION

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting data/documentation, are complete and accurate to the best of my knowledge.

APPROVALS

I certify that the Customer representations above have been verified, and are complete and correct to the best of my knowledge. I understand that the processing of this brand name/sole-source justification precludes the use of full and open competition.

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a brand name/sole source is in the best interest of the Government.

CONTRACTING OFFICER:

Name, Title, Code	Phone No.	Date
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